WILSON MASOKOVERE
versus
DESTINY OF AFRIKA NETWORK
and
DESTINY OF AFRIKA NETWORK NATIONAL HOUSING DEVELOPMENT TRUST

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 29 and 30 June 2026

Opposed Application

Z. Bofu, for the applicant
R Mabwe, for the respondents

MAMBARA J:

[1] This is an application for rescission, in terms of r 27 of the High Court Rules, 2021, of the default judgment granted by MANZUNZU J on 11 February 2026 under case number R-HCH 6454/25. By that order, the applicant was interdicted from entering or approaching the respondents' Mutare business premises and costs were awarded against him on the legal practitioner and client scale. The record further shows that the urgent chamber application had earlier been struck from the urgent roll by DEME J on 16 December 2025, and later removed from the roll by CHITAPI J on 14 January 2026. The same record also contains the parties' settlement correspondence of 8 and 9 January 2026 and a draft deed of settlement referring to a round-table meeting held on 13 January 2026.

[2] The governing rule is r 27(2), which empowers the court to rescind a default judgment upon "good and sufficient cause" being shown. The well-known factors were stated in *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S) and were reproduced in the heads of argument filed of record. They are: the reasonableness of the explanation for the default, the bona fides of the application for rescission, and the bona fides of the defence on the merits carrying some prospects of success. The same record also reproduces the dictum in *Deweras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corporation Ltd* 1998 (1) ZLR 368 (S) that wilful default does

not, as an inflexible rule, exclude rescission; the court must still ask whether good and sufficient cause has been shown. Those are the principles I apply.

[3] Mr *Bofu* submitted that once HCH 6454/25 had been struck off the roll it could not lawfully return to court without a specific order of reinstatement, and he relied on *Binga Rural District Council* v *Madhumba & Ors* HH 445/23, *Bindura Municipality* v *P Mugogo* HC 32/15, and Practice Direction 3 of 2023. Ms *Mabwe's* answer was that r 60(19) of the High Court Rules, 2021 is self-acting in urgent chamber matters: where urgency fails, the matter passes onto the ordinary roll, and no separate reinstatement order is required. She further submitted that Practice Direction 3 of 2023 concerns applications and appeals deemed fatally defective and does not govern urgent chamber applications. Those rival contentions were part of the parties' submissions before me.

[4] In my view, the procedural point does not avail the applicant. Practice Direction 3 of 2023, in substance, regulates the handling of applications and appeals treated as fatally defective at filing stage and the manner in which such defective process is to be regularised before it can proceed. It is not directed at the distinct situation created by r 60(19), namely an urgent chamber application that fails as an urgent matter and is thereafter dealt with on the ordinary roll. The purpose of r 60(19), again in substance, is to avoid the waste of process that would arise if every urgent matter found not to warrant urgent treatment had to be commenced afresh. The urgent application before DEME J was struck from the urgent roll; thereafter the matter proceeded under the "R-" reference on the ordinary process track. On these facts, I am not persuaded that the Registrar acted ultra vires by enrolling it on the ordinary roll. The authorities cited by the applicant on fatally defective process do not displace the specific procedural regime governing urgent chamber applications.

[5] Even if I were wrong on that procedural point, the application still founders on the two classic requirements for rescission. The first is the explanation for the default. On the documents before me, the explanation is not satisfactory.

[6] The applicant says he did not oppose because the parties were engaged in settlement negotiations and he believed the respondents would not pursue the matter. The difficulty for him is chronological and decisive. The urgent application was filed on 16 December 2025 and served on him on 18 December 2025. The respondents' version on the record is that the dies for opposition expired before the applicant's legal practitioners wrote on 8 January 2026 proposing a round-table meeting. The applicant's own annexures show the proposal letter

dated 8 January 2026, the respondents' acceptance dated 9 January 2026, the meeting scheduled for 13 January 2026, and the ensuing draft deed of settlement referring to that same meeting. Thus, whatever hope of settlement later emerged, it arose after the applicant had already fallen into default. Events occurring after default do not explain the default itself.

[7] Nor is there any written undertaking by the respondents that they would abandon or suspend the proceedings altogether. What the record does show is that the respondents were willing to discuss settlement and even allowed the matter to be removed from the roll on 14 January 2026 to facilitate negotiations. That was not the same thing as a binding abandonment of the claim. The applicant's allegation that the final order was procured by stealth or fraud is not supported by cogent evidence. It is, at best for him, an inference he seeks to draw from the fact of negotiations. That is not enough.

[8] In short, the explanation fails the test of reasonableness. The documents show that the applicant was already in default before negotiations commenced. In the language of *Stockil* v *Griffiths*, the first and central leg of "good and sufficient cause" has not been established. The applicant invoked *Deweras Farm and Cornishe (Pvt) Ltd* & *Another* v *Tapomwa* SC 26/14 to urge a broad discretion in his favour. I accept, as I must, that the court's discretion is wide and that rescission is not barred by a mere finding of wilful default. But discretion is exercised judicially and on proved facts. The proved facts here do not furnish a reasonable explanation.

[9] The second leg is prospects of success on the merits. Here too the applicant has not shown a *bona fide* defence carrying real prospects.

[10] The interdict that culminated in the default order was founded on the respondents' assertion that the applicant had been dismissed from his position as projects manager and had refused to vacate the Mutare premises. The founding papers in the interdict application describe him as the former projects manager. The suspension letter and notice of hearing similarly proceeded on that footing. The notice of hearing was served, the applicant's legal practitioners responded that he would boycott the hearing, and the disciplinary outcome recorded his dismissal. The draft deed of settlement later exchanged between the parties likewise proceeded from the premise that a disciplinary hearing had been held and that a dismissal decision existed.

[11] Against that, the applicant says he was not an employee at all but a trustee, and that any disciplinary process under an employment code was therefore a nullity. The argument is

not without ingenuity. It is, however, not enough in this rescission application. First, the extant disciplinary decision has not been set aside. The respondents correctly relied on *Commercial Farmers' Union* v *Mhuriro & Others* 2000 (2) ZLR 405 (S) and *Nhapata* v *Maswi* SC 38/16 for the orthodox proposition that a decision of a competent tribunal or authority stands and must be obeyed until it is properly set aside. That principle is fatal to the applicant's present stance. He cannot, in these proceedings, treat the dismissal decision as if it did not exist while taking no proper step to overturn it.

[12] Second, the record undermines the suggestion that his trusteeship presently gives him a legal entitlement to remain in occupation or control. The notarial deed of trust annexed by the applicant himself shows that trustees other than the founder hold office for a maximum period of four years unless reappointed for a further term. The deed was executed in 2017. The applicant has produced no resolution or other document evidencing renewal of his trusteeship beyond the limited term set by the deed. On the papers before me, therefore, the respondents' contention that his trusteeship had lapsed stands unanswered in any material way.

[13] Third, the applicant did not attach a draft opposing affidavit in the main matter setting out, in a concrete and procedurally usable form, the defence he says he would advance if rescission were granted. That omission is not necessarily fatal in every case, but in a matter where the explanation for default is already weak it becomes another indicator that the defence lacks present substance.

[14] I accordingly conclude that the applicant has not shown prospects of success on the merits. The dismissal decision remains extant. His purported trusteeship is not shown to be current. And the interdict sought to regulate possession and control of the respondents' premises in the face of those extant positions.

[15] Ms *Mabwe* also urged me to dismiss the matter because the applicant allegedly approached the court with dirty hands, having been cited in contempt proceedings under HCH 834/26, and she relied on *Paul Garry Friendship* v *Cargo Carriers* 2013 (1) ZLR, *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (SC), and *Matsika* v *Chingwena SC* 144/21. There is force in the submission that candour is indispensable when a litigant seeks discretionary relief. I also accept the general proposition that this court may, in an appropriate case, look at another record properly placed before it. But I do not consider it necessary to decide this

application on that basis. The rescission application fails on ordinary rule 27 principles without the need to rest the judgment on the pending contempt proceedings.

[16] For completeness, I should add that the accusations of stealth, dishonesty and fraud levelled by the applicant against the respondents were serious and ought not to have been made lightly. The documentary record does not sustain them. What it demonstrates is not fraud, but failed settlement negotiations supervening after the applicant had already defaulted.

[17] Putting the matter together, the applicant has failed to establish "good and sufficient cause" within the meaning of r 27. He has not given a reasonable explanation for the default. He has not demonstrated a bona fide defence with prospects of success. The discretion to rescind cannot therefore be exercised in his favour.

[18] On costs, the respondents sought costs on the higher scale. The application was weak, and some of the allegations made by the applicant were unhelpful and unsupported. Even so, the procedural history of the matter, including the intervening negotiations, was unusual enough to create some room, however slender, for the applicant to test his position in court. In those circumstances I am not persuaded that punitive costs are warranted in this rescission application.

[19] In the result, it is ordered that:

The application for rescission of default judgment be and is hereby dismissed with costs on the ordinary scale.

MAMBARA J:…….

Tabana Marwa, applicant's legal practitioners
T. Pfigu Attorneys, respondent's legal practitioners.